

C.C.R.B CASE CLOSING FORM

Investigator assigned: Vines		Team: 2	CCRB#: 9900728	☒ Force ☒ Discourtesy ☒ Abuse ☐ O.L. ☐ Injury
Date of incident: 2/15/99	Time of incident: 8:30 PM	Location of incident: #2 Subway Station at Gun Hill Road, Bronx	Pct. of occurrence: 47th	Date S.O.L. Expires: 8/15/00
Date reported: 2/16/99	Time reported: 7:07 PM	To whom/where/how reported: This complaint was called in to the CCRB by the complainant, § 87(2)(b)		
Complainant: § 87(2)(b)		Home address: § 87(2)(b)		
Victim(s): § 87(2)(b)		Home address: § 87(2)(b)		
Witness(es): § 87(2)(b) § 87(2)(b)		Home address: § 87(2)(b)		
Subject officer(s) (include rank): POM Johnny Orellana		Shield: 07572	Tax: 920679	Command: TD-12 (865)
Witness officer(s) (include rank):		Shield:	Tax:	Command:
Allegation(s) by letter: A. <u>Force</u> : Officer Orellana used unnecessary force when he shoved § 87(2)(b) twice, in violation of PG Procedure 104-01 Pg. 3. B. <u>Discourtesy</u> : Officer Orellana was discourteous when he told § 87(2)(b) to, "Get the fuck out of here," in violation of PG Procedure 104-01 Pg. 3. C. <u>Abuse of Authority</u> : Officer Orellana abused his authority when he detained and handcuffed § 87(2)(b) in violation of PG Procedure 116-33.				Recommendation(s): § 87(2)(g) § 87(2)(g) § 87(2)(g)

Synopsis

§ 87(2)(b) walked a friend (named § 87(2)(b)) and her children to the #2 Subway Station on Gun Hill Road in the Bronx. While standing in the mezzanine area in the immediate vicinity of the turnstiles conversing, § 87(2)(b) and § 87(2)(b) encountered Officer Orellana. The officer confronted § 87(2)(b) about using her children's Metro Card student passes as payment for their train fare on a holiday (President's Day). Officer Orellana did not issue § 87(2)(b) a summons and instead warned her not to commit the infraction again. § 87(2)(b) and § 87(2)(b) continued to stand by the turnstiles and converse when Officer Orellana yelled at § 87(2)(b) "Get out of the turnstiles!" § 87(2)(b)

approached the officer and a verbal altercation ensued. § 87(2)(b) alleged that he was shoved twice and cursed at by the officer. § 87(2)(b) further alleged that Officer Orellana then detained, handcuffed and issued him a summons.

§ 87(2)(g)

Summary of Complaint

On February 15, 1999, § 87(2)(b) had left his home and walked § 87(2)(b) and her children to the #2 Subway Station on Gun Hill Road.

When they entered the mezzanine area, § 87(2)(b) used her children's Metro Cards student passes as payment for their train fare. After § 87(2)(b) paid her train fare and passed through the turnstile, she and § 87(2)(b) stood between the turnstiles and conversed with each other. Officer Orellana, who was standing inside of the token booth with the clerk, exited and approached § 87(2)(b) and § 87(2)(b). Officer Orellana confronted § 87(2)(b) about using the student Metro Cards on a holiday (President's Day) for her children. Instead of issuing § 87(2)(b) a summons for the infraction, Officer Orellana warned her not to do it again. The officer then walked away and § 87(2)(b) and § 87(2)(b) stood in the same spot and resumed their conversation.

At approximately 8:15 PM, (several minutes after his initial encounter with § 87(2)(b) Officer Orellana exited the token booth again and yelled at § 87(2)(b) "Get out of the turnstiles!" § 87(2)(b) walked over to the officer and asked, "What's your problem? Why are you yelling at me?" A verbal altercation ensued between § 87(2)(b) and Officer Orellana. § 87(2)(b) alleged that during the verbal altercation, Officer Orellana shoved him twice and told him to, "Get the fuck out of here!" § 87(2)(b) walked away from the officer and back over to the turnstiles to say good night to § 87(2)(b) § 87(2)(b) alleged that when Officer Orellana saw him walk back to the turnstiles he yelled at § 87(2)(b) "Didn't I tell you to back up from that spot? The officer then instructed § 87(2)(b) and § 87(2)(b) not to move. Officer Orellana requested that § 87(2)(b) hand over her children's Metro Card passes and asked § 87(2)(b) if he had any identification. § 87(2)(b) complied. However, when § 87(2)(b) informed the officer that he did not have his identification with him, § 87(2)(b) was handcuffed and then written a summons for disobeying a lawful order (not moving from the turnstiles when asked by an officer to do so.).

Results of Investigation

§ 87(2)(b) initially filed his complaint with Transit District (TD) 12 immediately following the above incident. The complaint was then forwarded to the CCRB by Sgt. Siegel of TD-12. The case was then assigned CCRB #9900710 and forwarded to Inv. Wilkinson. However, § 87(2)(b) also called the

CCRB the following day (February 16th) and filed this same complaint again, thereby causing a duplicate case. The second complaint was assigned CCRB #9900728 and assigned to this Investigator. § 87(2)(g)

This case was referred to the conciliation unit. § 87(2)(g)

When this Investigator initially spoke with § 87(2)(b) he confessed that he has a tendency to “mouth off,” however, he felt that Officer Orellana needed to be retrained on the proper way to deal with members of the public. When § 87(2)(b) was notified that conciliation was not available for his case, he agreed to come to the CCRB to be interviewed.

During § 87(2)(b) interview, he admitted that he approached Officer Orellana after the officer allegedly yelled at him to “Get out of the turnstile.” § 87(2)(b) explained that when he approached Officer Orellana that he said to the officer, “Why are you yelling at me? What’s your problem? ... You didn’t have to talk to me that way by hollering and screaming... You’re yelling at me like I’m some kind of criminal... like I’m some punk kid in the street... You already came out of the (token) booth once... I didn’t know that I wasn’t supposed to be standing there (blocking the turnstiles), but if I truly wasn’t supposed to be there, you would have told me then.” § 87(2)(b) alleged that Officer Orellana responded to what he said by stepping very close to him and shoving him. § 87(2)(b) felt that Officer Orellana was trying to antagonize him at this point. He stated that told the officer not to shove him again because he (Officer Orellana) did not know “...who he was fucking with.” § 87(2)(b) alleged that Officer Orellana shoved him again and told him to, “Get the fuck out of here.” It was at this time that § 87(2)(b), who had been standing by the turnstiles all the while, advised § 87(2)(b) not to say anything else to the officer.

§ 87(2)(b) admitted that he walked back over to the turnstiles to say good night to § 87(2)(b) and that when the officer saw this he yelled at § 87(2)(b) “Didn’t I tell you to back up from that spot?” § 87(2)(b) responded to Officer Orellana, “Be quiet because you’re starting to get on my nerves!” and then proceeded to leave the station. It was at this time that Officer Orellana instructed § 87(2)(b) not to leave the station and requested to see his identification. When § 87(2)(b) explained that he did not have his identification with him, Officer Orellana allegedly said, “OK, fine. I know what I’ll do for you” and asked him to turn around. § 87(2)(b) was then handcuffed and he demanded that Officer Orellana take him to the precinct. § 87(2)(b) went to call § 87(2)(b) wife. Officer Orellana followed § 87(2)(b) to the pay phones and requested that she provide him with her identification and the Metro Card student passes. § 87(2)(b) complied and Officer Orellana placed a telephone call himself. Officer Orellana then walked back over to § 87(2)(b) and began to write him a summons.

While Officer Orellana wrote the summons for § 87(2)(b), § 87(2)(b) inquired as to why the officer was issuing him a summons. Officer Orellana stated, “For me asking you to move several times and you didn’t.” § 87(2)(b) responded, “I did move, but you didn’t like it that I moved toward you. Then you put your hands on me, but I know what to do about that... I’m going to your job in a minute.” § 87(2)(b) also accused the officer of committing “double indemnity.” § 87(2)(b) explained to Officer

Orellana, "You took this woman's id and her kid's school passes when you already approached her about this. That's not right..." Officer Orellana cut § 87(2)(b) off and explained that he had a choice to either write § 87(2)(b) a summons or to arrest her. § 87(2)(b) responded, "But you could have done that in the beginning and you chose not to. But, because you're mad at me, you want to give her a summons. Why don't you just give her back her id and the passes and let them go home?" § 87(2)(b) alleged that the officer agreed and returned § 87(2)(b) identification and her children's Metro Card passes. When § 87(2)(b) informed the officer that § 87(2)(b) wife wanted to speak with her husband, the officer held the telephone for § 87(2)(b) and allowed him to speak with his wife. § 87(2)(b) and her children proceeded upstairs to the train platform.

After the handcuffs were removed from § 87(2)(b) and he was issued the summons, he thanked Officer Orellana for "...giving § 87(2)(b) a break." When § 87(2)(b) proceeded to leave the station, he alleged that the token booth clerk said to him, "Y'all could have avoided all of that. You didn't have to speak to him (referring to Officer Orellana) like that."

§ 87(2)(b) admitted that he found out after the incident that he was not supposed to stand between the turnstiles. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

This Investigator tried to interview § 87(2)(b) and her children for this case. § 87(2)(b) however, did not cooperate with the efforts of this Investigator to interview her and her children, as she missed two scheduled appointments and made no effort to reschedule the last appointment.

This Investigator spoke with § 87(2)(b) Station Agent (token booth clerk), regarding this incident. § 87(2)(b) stated that when § 87(2)(b) and her children entered the mezzanine area, he observed § 87(2)(b) use the Metro Card student pass as payment for her train fare while children walked under the turnstile bar. § 87(2)(b) stated that he saw Officer Orellana walking down the stairs from the train platform as § 87(2)(b) committed the infraction. § 87(2)(b) also explained that there is an indicator (a light) on the turnstile that affirmed that § 87(2)(b) had used a student pass. § 87(2)(b) stated that he did not address the matter of § 87(2)(b) using the student pass for herself because he saw Officer Orellana walk toward where § 87(2)(b) and § 87(2)(b) stood. § 87(2)(b) admitted that he could not hear what Officer Orellana was saying to § 87(2)(b) about the student pass and surmised that the officer had asked to see the pass. Officer Orellana then walked over to and entered the token booth with § 87(2)(b) and asked § 87(2)(b) his pass number. § 87(2)(b) recalled that Officer Orellana explained to him that he could have issued § 87(2)(b) a summons, but decided against it.

§ 87(2)(b) explained that while he and Officer Orellana spoke, they both observed § 87(2)(b) blocking the turnstiles, in what § 87(2)(b) described as a "sprawled out" fashion. § 87(2)(b) stated that Officer Orellana opened the booth door and called out to § 87(2)(b) "Sir, you can't do that. Could you step aside from the turnstiles so the customers can enter?" § 87(2)(b) recalled that § 87(2)(b) "walked right up into the officer's face. They were inches apart." The officer then requested that § 87(2)(b) step back. § 87(2)(b) however, did not step back and § 87(2)(b) recalled § 87(2)(b) yelling at § 87(2)(b) "Come on! Come back! Leave it alone!" § 87(2)(b) said that it was at this time that § 87(2)(b) was handcuffed. He also recalled that § 87(2)(b) went to place a telephone call while § 87(2)(b) was being handcuffed.

§ 87(2)(b) recalled that Officer Orellana asked § 87(2)(b) while he was handcuffed, if he had any identification on him. § 87(2)(b) explained that he did not hear what § 87(2)(b) told the officer and that he saw Officer Orellana place a telephone call while § 87(2)(b) stood handcuffed and waiting for his summons. When Officer Orellana finished with his telephone call, he walked back over to § 87(2)(b) removed the handcuffs and handed § 87(2)(b) his summons. § 87(2)(b) stated that § 87(2)(b) then approached him and asked for his information (name, pass number) and the token booth number. § 87(2)(b) told § 87(2)(b) "All of this wasn't necessary. All you had to do was just step aside."

§ 87(2)(b) recalled that § 87(2)(b) and Officer Orellana were not yelling or cursing at each other during the incident and that the only time the officer touched § 87(2)(b) was to handcuff him.

When this Investigator spoke with Officer Orellana, he stated that he and § 87(2)(b) (the token booth clerk) observed § 87(2)(b) use one of her children's student Metro Cards as payment for her train fare. § 87(2)(b) children went under the turnstile bar without paying. Officer Orellana recalled that he exited the token booth and approached § 87(2)(b). He stated that he informed § 87(2)(b) that she could have received a summons and/or could have been arrested for what she had done (using the student pass on a holiday). The officer stated that § 87(2)(b) apologized for her actions, explained that she did not have enough money to get home and said she would never do it again. § 87(2)(b) listened to the conversation between the officer and § 87(2)(b). Officer Orellana explained that he let § 87(2)(b) go with a warning and then returned to the token booth.

Officer Orellana recalled that 10 minutes had passed before he noticed § 87(2)(b) blocking the turnstiles while talking to § 87(2)(b). The officer stated that he stepped out of the token booth and asked § 87(2)(b) not to block the turnstiles. He stated that § 87(2)(b) in a loud voice, asked if he was talking to him. When Officer Orellana responded, "Yeah, I'm talking to you," he said that § 87(2)(b) walked quickly over to him, stopped within inches of his body and asked, "Is that how you speak to me Officer Orellana, 7572 (the officer's shield number)? Is that it... Is that how you pronounce it?" Officer Orellana explained that it was at this point that he "bladed his body" (turned his body sideways with his firearm away from § 87(2)(b) and then placed his hand by his firearm) toward § 87(2)(b) extended his left hand outward toward § 87(2)(b) chest and requested that he step back. § 87(2)(b) did not comply. Officer Orellana explained that he did not shove § 87(2)(b) and that he only "backed him up." Officer Orellana stated he exhibited this type of behavior because § 87(2)(b) was "...agitated, speaking with a raised voice and in my face..." Officer Orellana recalled that § 87(2)(b) smacked his hand down and said not to touch him. Officer Orellana then explained to § 87(2)(b) that he wanted him to "move away from the turnstiles" because there were a lot of people entering and leaving the station. Officer Orellana walked away and when he looked back, saw § 87(2)(b) blocking the turnstiles again.

Officer Orellana walked back toward § 87(2)(b) and asked him if he had any identification. When § 87(2)(b) told the officer that he did not have his identification with him, Officer Orellana requested that § 87(2)(b) turn around. § 87(2)(b) was subsequently handcuffed and written a summons § 87(2)(a) 160.50. Officer Orellana recalled that he asked § 87(2)(b) to verify § 87(2)(b) pedigree information as he prepared the summons. He also recalled that § 87(2)(b) placed a telephone call to someone at this time and surmised that she had called § 87(2)(b) sister. Officer Orellana stated that § 87(2)(b) became very apologetic toward him and told him that he appreciated the fact that he did not issue a summons to § 87(2)(b).

Officer Orellana stated that he did not curse at § 87(2)(b) at any time and stated that he recalled Mr. [redacted] saying something about "getting the fuck out of here."

Conclusions and Recommendations

According to all accounts of the incident, Officer Orellana had confronted § 87(2)(b) about using the Metro Card student pass on a holiday and warned her not to do it again; the officer asked § 87(2)(b) not to block the turnstiles; § 87(2)(b) initially approached Officer Orellana after the officer made the request and § 87(2)(b) was subsequently handcuffed and summonsed.

This situation escalated from a simple request not to block the turnstiles to § 87(2)(b) being issued a summons and filing a complaint. Based on the accounts of § 87(2)(b) and Officer Orellana, § 87(2)(b) stood very close to the officer and would not step away even when the officer requested him to do so. This caused Officer Orellana to extend his hand toward § 87(2)(b) chest to "back him up." § 87(2)(b) even stated that § 87(2)(b) informed him to leave the officer alone. § 87(2)(g)

§ 87(2)(g)

After § 87(2)(b) did not comply with Officer Orellana's request not to block the turnstiles, he was detained and the officer requested his identification. When § 87(2)(b) informed Officer Orellana that he did not have his identification, he was handcuffed and issued a summons. § 87(2)(g)

§ 87(2)(g) if Officer Orellana told § 87(2)(b) to, "Get the fuck out of here" during this incident. The officer denied he said this and stated that § 87(2)(b) commented about "Getting the fuck out of here." § 87(2)(b) stated that he did not hear § 87(2)(b) or Officer Orellana curse at any time. § 87(2)(b) alleged that the officer said this to him and a statement could not be obtained from § 87(2)(b) because she did not cooperate with this investigation. § 87(2)(g)

Investigator: _____

Date: _____

Supervisor: _____

Date: _____

Reviewed by: _____

Date: _____

Reviewed by: _____

Date: _____